

## 24BBCV00289 24BBCV00289

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-04

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Case Number: 24BBCV00289 Hearing Date: September 4, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO COMPEL INITIAL RESPOSES; REQUEST FOR SANCTIONS

Hearing Date: 9/4/26

CASE NO.: 24BBCV00289

CASE NAME: Golden Gate Realty & Investments, Inc. v. Toluca Village  
Owners Assoc., and DOES 1-50

Moving Party: Defendant Golden Gate Realty & Investment, Inc.

Responding Party: Unopposed

Notice: Sufficient

Ruling:

GRANT.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this

matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at [email protected] or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

## BACKGROUND

This is a negligence and breach of contract action. On February 5, 2026, Golden Gate Realty & Investments Inc. (Plaintiff) brought this action against defendant Toluca Village Owners Association (Defendant) due to water damage sustained to Plaintiff's property in violation of the HOA agreements in place.

On July 22, 2026, Defendant filed the instant motions to compel initial responses to Form Interrogatories (Res ID: 3321), Special Interrogatories (Res ID: 9078), and Requests for Production of Documents (RPDs) (Res ID: 8966) served on Plaintiff.

No oppositions have been filed as of August 31, 2026.

## LEGAL

### STANDARD

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

A party must respond to requests for production of documents within 30

days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; Sinaiko, supra, 148 Cal.App.4th at 411.)

## DISCUSSION

### Motion to Compel Initial Responses

Defendant contends that Plaintiff failed to timely respond to Form Interrogatories, Special Interrogatories, and RPDs on or by the statutory deadline. (Mot., p. 3.)

Here, Defendant's counsel served Plaintiff with the Form Interrogatories, Special Interrogatories, and RPDs by electronic service on November 25, 2025. (Mot. Compel Form Interrog., Koletsky Decl., ¶ 2; Mot. Compel Special Interrog., Koletsky Decl., ¶ 2; Mot., Compel RPDs, Koletsky Decl., ¶ 2.) Defendant contends that initial responses were due December 30, 2025. (Koletsky Decl., ¶ 3.) Defendant's counsel declares that several extensions were given to Plaintiff in an effort to avoid filing these motions, but Plaintiff again failed to respond. (Koletsky Decl., ¶¶ 4-5.) On May 26, 2026, Defendant's counsel served Plaintiff with a meet and confer letter instructing responses to be served by June 1, 2026. (Koletsky Decl., ¶ 5.) On June 3, 2026, Plaintiff emailed a link supposedly containing responses however Defendant could not access the link. (Koletsky Decl., ¶ 6.) On July 6, 2026, Defendant's counsel met with Plaintiff's counsel via telephone to discuss discovery responses, and Plaintiff agreed to provide discovery responses by July 24, 2026. (Koletsky Decl., ¶ 7.) As of July 22, 2026, Defendant declares that Plaintiff has not provided verified responses. (Koletsky Decl., ¶ 8.)

Since Plaintiff was properly served and failed to respond to discovery requests by the statutory

deadline, Defendant is entitled to an order compelling Plaintiff to provide responses without objections to Form Interrogatories, Special Interrogatories, and RPDs.

Accordingly, the motion to compel initial responses is GRANTED.

#### Sanctions

The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

#### Plaintiff's

failure to comply with discovery requests necessitated the motion, and the conduct is subject to sanctions. (See Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a).) Moreover, The Court finds Defendant's Notices of Motion comply with Code of Civil Procedure section 2023.040.

#### Defendant's counsel

requests sanctions in the amount of \$2,959.95 consisting of \$986.65 for each motion. (Koletsky Decl., ¶ 9.) Defendant has filed a total of 3 motions to compel. For each motion, Defendant seeks attorney's fees of \$925 plus \$184.95 (\$61.65 x 12) in filing costs. (Ibid.) Requested attorney's fees reflect 2.5 hours spent researching, preparing, and drafting this motion and 1.25 hours anticipated analyzing any opposition and drafting a reply at a rate of \$185 per hour for each motion. (Ibid.)

The Court, in its discretion, will only award \$555 to reflect three hours at a rate of \$185 for all three motions filed against Plaintiff plus \$180 filing fees for each motion (\$60 x 3). All motions are substantially similar and straight forward.

Accordingly, the Court GRANTS Defendant's request for imposition of sanctions against Defendant in the amount of \$735.

#### CONCLUSION AND ORDER

Defendant Toluca Village Owners Association's motions to compel initial responses to form interrogatories (Res ID: 3321), special interrogatories (Res ID: 9078), and RPDs (Res ID: 8966) are GRANTED.

Defendant Toluca Village Owners Association's request for sanctions is GRANTED in the amount of \$735, to be paid by Plaintiff to Defendant within 30 days from this ruling.

MOVING PARTY to submit a proposed order consistent with this ruling within 10 days of this hearing and provide notice.